

Feoffment.—An infant until recently might have made a *Feoffment*, and at the same time have declared a use upon it, and both feoffment and use were voidable only and not void (*g*); and by analogy the infant might also have engrafted a trust upon the legal estate; but a Court of equity would never have allowed any equitable interest to be enforced against the infant himself to his prejudice, but gave him the same power of avoidance over the equitable as he had over the legal estate, and if the infant had died without having avoided the trust, the Court would still have investigated the transaction, and seen that no unfair advantage was taken (*h*).

Custom of Kent.—An infant¹ may by the custom of [*26] Kent for valuable *consideration certainly, and, according to the better opinion, even without value (*a*), make a feoffment at the age of fifteen, and upon such feoffment he may declare uses (*b*). But a Court of equity would no doubt confine such a custom within its narrowest bounds, and as trusts have sprung into being since the statute of Hen. 8, might hold the custom to be void as of recent growth in respect of the equitable interest, and at all events would not allow the custom to be made an instrument of fraud.

Wills Act.—Before the late Wills Act (*c*) an infant of the age of fourteen years might have bequeathed his personal estate, and therefore might have created a trust of it by will; but now, as regards personal as well as real estate, every testator must be of the age of twenty-one years.

(*g*) Bac. on Uses, 67; Bac. Ab. Uses, E. See now 8 & 9 Vic. c. 106, s. 3.

(*a*) Robinson on Gavelkind.

(*b*) Gilb. on Uses, 250.

(*c*) 7 W. 4 & 1 Vic. c. 26.

(*h*) See Cr. Dig. vol. iv. p. 130.

¹ May create a trust which is voidable; *Bool v. Mix*, 17 Wend. 119; *Tucker v. Moreland*, 10 Pet. 71; *Zouch v. Parsons*, 3 Burr. 1794; *Eagle Fire Co. v. Lent*, 6 Paige, 635; *McCall v. Parker*, 13 Met. 372; *Irvine v. Irvine*, 9 Wall. 617; but by infant only, when of age; *Ingraham v. Baldwin*, 12 Barb. 9; except in case of his death; *Starr v. Wright*, 20 Ohio St. 97. As to marriage settlements, see *Levering v. Levering*, 3 Md. Ch. 365; *Lee v. Stuart*, 2 Leigh. 76; *Wilson v. McCullough*, 19 Pa. St. 77; *Temple v. Hawley*, 1 Sandf. Ch. 153; *Healy v. Rowan*, 5 Gratt. 414; *Whichcote v. Lyle*, 28 Pa. St. 73; *Succession of Wilder*, 22 La. Ann. 219; *McCartee v. Teller*, 2 Paige, 511.